

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
Mahmadu Gumaneh,: Index Number:
Date Purchased:
: Date Filed:

Plaintiffs

: SUMMONS

-against- :

City of New York, New York City Police Department, :
Police Officer Richard Castellano, Shield 25087 of the 44
Precinct, Police Officer Andrew Sokolohorsky, Shield 7254:
of the 44 Precinct and New York City Police Officers John
Doe, :Plaintiff's residence is:
1330 Webster Avenue
Bronx, NY 10456

Defendants

-----X
TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose in Bronx County.

Dated: April 25, 2023
New York, NY

Yours, etc.,

Jason Steinberger

LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiffs
505 Eighth Avenue
Suite 701
New York, NY 10021
(646) 256-1007

To: City of New York

New York City Police Department

Police Officer Richard Castellano, Shield 25087 of the 44 Precinct

Police Officer Andrew Sokolohorsky, Shield 7254 of the 44 Precinct

New York City Police Officers John Doe,

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X

Mahmadu Gumaneh,

:

Plaintiffs

:

VERIFIED COMPLAINT

-against-

:

City of New York, New York City Police Department, :
Police Officer Richard Castellano, Shield 25087 of the 44
Precinct, Police Officer Andrew Sokolohorsky, Shield 7254:
of the 44 Precinct and New York City Police Officers John
Doe, :

Defendants

-----X

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Ahmadu Gumaneh (hereinafter referred to as "GUMANEH") is a resident of Bronx County, State of New York.
2. That at all times hereinafter mentioned, Police Officer Richard Castellano, Shield 25087 of the 44 Precinct (hereinafter referred to as "CASTELLANO") was employed by the New York City Police Department.
3. That at all times hereinafter mentioned, Police Officer Andrew Sokolohorsky, Shield 7254 of the 44 Precinct (hereinafter referred to as "SOKOLOHORSKY") was employed by the New York City Police Department.
4. That at all times hereinafter mentioned, the New York City Police Officers John Doe (hereinafter referred to as "DOES") were employed by the New York City Police Department.

5. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.

6. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.

7. On or about June 29, 2022 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs' claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.

8. That on or about October 7, 2022 a hearing required by Municipal Law 50-H was conducted. At said hearing, Plaintiff testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

9. That on or about January 12, 2019 at approximately 7:00 PM in the vicinity of Grand Concourse and Marcy Place, Bronx, New York, Plaintiff was lawfully sitting inside of a car when he was ordered to step out from the car by CASTELLANO, SOKOLOHORSKY and DOES.

10. That once Plaintiff stepped out from the car, CASTELLANO, SOKOLOHORSKY and DOES, struck him about his face and body and threw him to the ground.

11. That CASTELLANO, SOKOLOHORSKY and DOES then stuck Plaintiff numerous times to his face, head and body with hard objects.

12. That CASTELLANO, SOKOLOHORSKY and DOES then tazed Plaintiff.

13. That CASTELLANO, SOKOLOHORSKY and DOES handcuffed and arrested Plaintiff.
14. That as a result of the actions of CASTELLANO, SOKOLOHORSKY and DOES, Plaintiff sustained serious physical injury to his face, head and body.
15. That at no time did Plaintiff engaged in any illegal or unlawful behavior.
16. That at no time did Plaintiff assault or attempt to assault any New York City Police Officer.
17. That at no time did Plaintiff harass or attempt to harass any New York City Police Officer.
18. That at no time did Plaintiff possess any marijuana.
19. That after Plaintiff was arrested, he was transported to the 44 precinct.
20. That while Plaintiff was held in the 44 precinct he was confined to a cell with numerous other male prisoners.
21. That while Plaintiff was held in the 44 precinct he was searched and that nothing illegal was found.
22. That after being held in the 44 precinct for several hours, he was transported to a local Bronx hospital where he received treatment for the injuries he sustained caused by CASTELLANO, SOKOLOHORSKY and DOES.
23. That after spending several hours in the local Bronx hospital, Plaintiff was transported to Bronx County Central Booking, located at 265 East 161 Street, Bronx, NY.
24. That while Plaintiff was held in Bronx County Central Booking, he was confined to a cell with numerous other male prisoners.

25. That on or about January 14, 2021 Plaintiff was arraigned on docket CR-000606-21BX wherein he was charged with Assault on a Police Officer, Penal Law § 120.08, Unlawful Possession of Marijuana and other related charges.

26. That at the arraignment, Plaintiff was released and ordered to return to court.

27. That on and between January 14, 2021 and June 22, 2022, Plaintiff made numerous court appearances until the case against Plaintiff was dismissed upon application of the Office of the Bronx County District Attorney.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

28. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 27, as if more fully stated herein at length.

29. That Defendants acted with actual malice toward Plaintiff and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

30. That as a result of the actions of Defendants, Plaintiff was seriously injured due to the intentional manner in which Defendants, their agents, servants, employees and/or licensees treated Plaintiff and he was wounded, suffered, still suffers, and will continue to suffer for some time great physical pain and great bodily injuries and became sick, sore, lame and disabled and so remained for a considerable length of time.

31. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

32. That as a result of the actions by Defendants, Plaintiff was traumatized and fears his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.

33. That as a result of the Defendants' actions, Plaintiff has been unable to sleep.

34. That as a result of the Defendants' actions, Plaintiff missed several days from work.

35. That as a result of the Defendants' actions Plaintiff sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

36. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 35, as if more fully stated herein at length.

37. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of the Plaintiff as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

38. Defendants having no lawful authority to arrest Plaintiff, did, nevertheless, unlawfully arrest Plaintiff with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANTS

39. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 38, as if more fully stated herein at length.

40. Defendants conspired to violate Plaintiff's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS

41. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 40, as if more fully stated herein at length.

42. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

43. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

44. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to claim that Plaintiff assaulted them when CASTELLANO, SOKOLOHORSKY and DOES knew Plaintiff never committed any crime. Plaintiff is thus entitled to compensatory and exemplary damages.

45. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to claim that Plaintiff possessed marijuana when CASTELLANO, SOKOLOHORSKY and DOES knew he had not. Plaintiff is thus entitled to compensatory and exemplary damages.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

46. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 45, as if more fully stated herein at length.

47. At all times pertinent hereto, CASTELLANO, SOKOLOHORSKY and DOES were acting within the scope of her employment as officers of the New York City Police Department and City of New York.

48. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that MERO, BARRIGA and DOES committed within the scope of her employment.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

49. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 48, as if more fully stated herein at length.

50. The City of New York and New York City Police Department's failure to provide adequate training and supervision to CASTELLANO, SOKOLOHORSKY and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

51. That the City of New York and New York City Police Department were aware that CASTELLANO was the subject of nine (9) Civilian Complaint Review Board complaints and that two (2) of those complaints were substantiated. Nevertheless, the City of New York and New York City Police Department continued to employ CASTELLANO.

52. That the City of New York and New York City Police Department were aware that CASTELLANO was the subject of a civil rights lawsuit, *George Pierce v. City of New York et al*, index number 19CV02405 filed in the Southern District of the District Court of the United States. Nevertheless, the City of New York and New York City Police Department continued to employ CASTELLANO.

53. That the City of New York and New York City Police Department were aware that CASTELLANO was the subject of a civil rights lawsuit, *Aaron Santiago v. City of New York et al*, index number 034034/2018E, filed in the State of New York, Bronx County. Nevertheless, the City of New York and New York City Police Department continued to employ CASTELLANO.

54. That the City of New York and New York City Police Department were aware that CASTELLANO was the subject of a civil rights lawsuit, *Albert Mitchell v. City of New York et al*, index number 302460/2016, filed in the State of New York, Bronx County. Nevertheless, the City of New York and New York City Police Department continued to employ CASTELLANO.

55. That the City of New York and New York City Police Department were aware that SOKOLOHORSKY was the three (3) Civilian Complaint Review Board complaints. Regardless, the City of New York and New York City Police Department continued to employ SOKOLOHORSKY.

56. That the City of New York and New York City Police Department were aware that SOKOLOHORSKY was the subject of a civil rights lawsuit, *Luis Castillo v. City of New York et al*, index number 029123/2020E, filed in the State of New York, Bronx County. Nevertheless, the City of New York and New York City Police Department continued to employ CASTELLANO.

**AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

57. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 56 as if more fully stated herein at length.

58. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff.

59. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

 Jason Steinberger
Jason A. Steinberger, Esq.
Attorney for Plaintiffs
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STATE OF NEW YORK: COUNTY OF NEW YORK

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof ; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: April 25, 2023

_____*Jason Steinberger*_____
Jason A. Steinberger